

23STCV20543 23STCV20543

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C06%2F25%2F2026

Source SHA-256: 5ff1b501aaa861bbebf0dd35a640a5fee05c0471558eb89b01d6876b2a890c19

Case Number: 23STCV20543 Hearing Date: June 25, 2026 Dept: 617

Dept.

617

Date:

6-25-26

Case

#: 23STCV20543

Trial

Date: None Set

ATTORNEYS' FEES

MOVING

PARTY: Defendant, Marc H. Garelick

RESPONDING

PARTY: Plaintiff, Ernest Calhoon

RELIEF

REQUESTED

Motion

for Attorneys' Fees

SUMMARY

OF ACTION

On

May 6, 2024, Plaintiff Ernest Calhoon filed a First Amended Complaint for defamation and intentional infliction of emotional distress against Defendant Marc H. Garelick, Judge Pro Tem. The complaint arises from an alleged accusation of Plaintiff "being on drugs," damaging his law practice. On October 17, 2024, the Court granted Defendant's special motion to strike the entire complaint. Judgment was entered in favor of Defendant on May 29, 2025.

RULING: Granted.

Defendant

moves for an award of \$12,608.24 in attorneys' fees and costs following his successful special motion to strike Plaintiff's First Amended Complaint. Defendant also requests a lodestar enhancement in the amount of \$475/hour as opposed to the discounted \$175/hour rate charged to Defendant given the "complex nature of the constitutional issues raised by the First Amended Complaint." Plaintiff filed a "cursory" opposition to the motion,[1] challenging the Court's exercise of its discretion to consider the untimely filed anti-SLAPP motion and contending certain orders of the prior judge are void due to a purported failure to timely respond to a disqualification challenge. Defendant's motion is granted and Defendant is awarded \$10,880.24 in fees and costs.

The

"prevailing defendant" on an anti-SLAPP motion "shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc., § 425.16, subd. (c)(1).) "Such entitlement includes fees and costs 'incurred in connection with' the anti-SLAPP motion itself, but not 'fees and costs incurred for the entire action.'" (Six4Three, LLC v. Facebook, Inc. (2025) 109 Cal.App.5th 635, 660.)

A motion for attorneys' fees must be served and filed within the time for the filing of a notice of appeal in a civil case. (Cal. Rules of Court, rule 3.1702(b)(1).) The time for the filing of a notice of appeal in an unlimited action is 60 days if a "Notice of Entry" of Judgment was served by the court clerk or a party to the action, or within 180 days of entry of judgment. (Id. rule 8.104.) Judgment was entered on May 29, 2025 and Notice of Entry of Judgment was served on the same day. Defendant served and filed his motion 4 days later on June 2, 2025. The motion is therefore timely.

Defendant also timely filed and served a memorandum of costs

on June 11, 2025. Plaintiff presents no challenge to the claimed costs. The Court finds no improperly listed items and the items appear reasonable. The Court thus awards all unchallenged costs.

The lodestar method is used “when determining an award of attorney fees under the anti-SLAPP statute.” (Frym v. 601 Main Street LLC (2022) 82 Cal.App.5th 613, 620.) “[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. [Citation.] The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.)

The reasonableness of attorney fees lies within the discretion of the trial court. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096.) The Court makes its determination based on the consideration of a number of factors, including, “the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (Ibid.) The Court should apply an objective standard of reasonableness. (Id. at p. 1098.) “A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 635.) The Court adheres to the “market rate” approach for contingency cases, and finds the “Laffey” charts general and only suggestive. (Pasternack v. McCullough (2021) 65 Cal.App.5th 1050, 1057; Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 619-20.)

Counsel lists a total of 55.9 billable hours, charged at a rate of \$175/hour, with a total billable listed amount of \$9,660. [McCormick Decl. ¶ 10, Ex. D.] The Court finds the billable rate reasonable given counsel's over 40 years of experience and his usual \$475/hour fee for similar work. [Id. ¶¶ 3, 6, 10, Ex. B.]

The Court

next considers the listed entries. “In referring to ‘reasonable’

compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (Ketchum v. Moses (2001)

24 Cal.4th 1122, 1132; Levy, supra,

4 Cal.App.4th at p. 817.) The Court considers the listings rather than engage

in a categorical determination of entitlement. (Morris, supra, 41 Cal.App.5th at p. 40; Mountjoy v. Bank of America, N.A. (2016) 245

Cal.App.4th 266, 280-81; Christian Research Institute v. Alnor (2008) 165

Cal.App.4th 1315, 1329.)

Plaintiff does not challenge any individual entries but

presents an inappropriate collateral attack on the underlying order. The Court nonetheless notes certain entries for unrecoverable administrative tasks for calendaring and archiving documents and emails. [See McCormick Decl. ¶ 10, Ex. D.] (See Zargarian v. BMW of North America, LLC

(C.D. Cal. 2020) 442 F.Supp.3d 1216, 1229.) Absent further elaboration

or objection from the parties, the Court presumes that such entries were

excluded as “non-billable” tasks identified in the billing record. The Court further excludes certain entries not incurred “in connection with” the special

motion to strike for a total amount of \$95. [McCormick Decl. ¶ 10, Ex. D:

3/28-4/4/24.] Given the lack of a reply, the Court only awards \$350 (\$175 x 2

hours) for reviewing Plaintiff’s opposition to the fee motion and preparing for

and attending the fee hearing. [See id. ¶ 11.] This reflects the reasonable time spent on these tasks. The Court otherwise finds the remaining entries reasonable.

Defendant requests a lodestar enhancement in the amount of

\$475/hour. When considering a lodestar enhancement request, the Court must consider a series of factors. “[T]he

lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein,

(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ketchum, supra, 24

Cal.4th at p. 1132.) “Contingency and delay factors” apply in consideration of

the application of a lodestar enhancement in order to reflect the “semiguaranteed”

recovery of fees upon a successfully prevailing party, but any consideration must still acknowledge the “contingency” nature of representation in general. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 400, fn. 11.)

“In *Serrano IV*, applying the same principles to the statutory fee award under Code of Civil Procedure section 1021.5, we reiterated that fee awards should be fully compensatory. We approved the calculation of attorney fees beginning with a lodestar figure based on the reasonable hours spent, multiplied by the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type. (Citation.) [¶] We held in *Serrano IV* that, absent circumstances rendering the award unjust, an attorney fee award should ordinarily include compensation for all the hours reasonably spent, including those relating solely to the fee. (Citation.) We explained that the purpose behind statutory fee authorizations—i.e., encouraging attorneys to act as private attorneys general and to vindicate important rights affecting the public interest—will often be frustrated, sometimes nullified, if awards are diluted or dissipated by lengthy, uncompensated proceedings to fix or defend a rightful fee claim.’ (Citation.) [¶] We acknowledged the discretion of the trial court in setting attorney fees, but emphasized that because the determination of the lodestar figures is so fundamental to arriving at an objectively reasonable amount, ‘the exercise of that discretion must be based on the lodestar adjustment method.’ (Ibid.) We also reiterated that the lodestar figure may be increased by application of a fee enhancement, or reduced as appropriate, after the trial court has considered other factors concerning the lawsuit, including the contingent nature of the fee award.” (*Ketchum*, *supra*, 24 Cal.4th at pp. 1133-34.)

The Court declines to award a lodestar enhancement on the subject action. “The lodestar amount is presumptively the reasonable fee amount, and thus a multiplier may be used to adjust the lodestar amount upward or downward only in ‘rare’ and ‘exceptional’ cases, supported by both ‘specific evidence’ on the record and detailed findings by the lower courts” that the lodestar amount is unreasonably low or unreasonably high.” (*Van Gerwen v. Guarantee Mut. Life Co.* (9th Cir. 2000) 214 F.3d 1041, 1045.) The Court finds the lodestar determination sufficiently addresses the fee here as the case involved a 5-page amended complaint and a relatively straightforward immunity defense.

In sum, Defendant is awarded \$9,915 in attorneys' fees and the full requested \$965.24 in costs for a total amount of \$10,880.24.

Because the amount of fees exceeds \$5,000, the order is immediately appealable. (Code Civ. Proc., § 904.1, subd. (a)(12); *Doe v. Luster* (2006) 145 Cal.App.4th 139, 146.)

Defendant to give notice.

[1] The

Court notes that Plaintiff, appearing in pro per, was served with the motion electronically although he has not affirmatively consented to electronic service. (Code Civ. Proc., § 1010.6, subd. (c)(2); Cal. Rules of Court, rule 2.251(c)(3)(B).) Plaintiff has, however, waived this defect because in his opposition he makes no objection to the manner of service and attempts to argue the merits of the motion. (See *Alliance Bank v. Murray* (1984) 161 Cal.App.3d 1, 7 ["appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion"].) Leading up to the hearing, Plaintiff also filed ex partes requesting a continuance on grounds other than defective service.